

FEDERAL MARITIME COMMISSION

DOCKET NO. 14-02

**OCEANIC BRIDGE INTERNATIONAL, INC. – POSSIBLE VIOLATIONS OF
SECTION 10(a)(1) OF THE SHIPPING ACT OF 1984**

**BUREAU OF ENFORCEMENT'S
STATUS REPORT**

The Bureau of Enforcement (BOE) submits this status report in lieu of the joint status report required by the Initial Order served in this proceeding on February 25, 2014.

On February 21, 2014, the Commission issued an Order of Investigation and Hearing (Commission Order) initiating this proceeding naming Oceanic Bridge International, Inc. (Oceanic Bridge) as Respondent, making BOE a party, and ordering Oceanic Bridge to file with the Commission and serve upon BOE a verified answer to the allegations in the Order on or before March 25, 2014. On February 25, 2014, the Administrative Law Judge (ALJ) issued an Initial Order (ALJ Order) setting forth, among other things, a schedule of requirements to be met by BOE and Respondent the timing of which was computed from the date of service of Respondent's answer.

On March 14, 2014, BOE filed a Notice of Appearance entering the appearances of its Director and Deputy Director. On the same date, BOE served discovery upon Respondent via United Parcel Service and requiring responses within 30 days of service.

The Commission's Office of the Secretary has verified that Respondent received the Commission Order on February 24, 2014. Similarly, BOE has verified that Respondent received BOE's discovery requests on March 17, 2014. To date, Respondent has not filed with the Commission or served on BOE an answer to the Commission Order, entered an appearance, or responded to BOE's discovery.

Thus it appears that Respondent has elected not to contest the allegations in the Commission Order and is in default. Rule 63 of the Commission's Rules of Practice and Procedure specifically addresses this circumstance as follows:

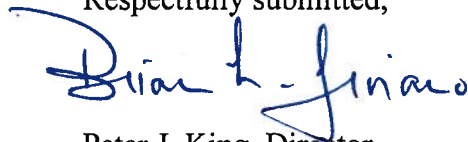
Failure of a respondent to file an answer to an Order of Investigation and Hearing within the time provided will be deemed to constitute a waiver of the respondent's right to appear and contest the allegations in the Order . . . and to authorize the presiding officer to enter a decision on default as provided for in 46 CFR 502.65. Well pleaded factual allegations in the Order . . . not answered or addressed will be deemed to be admitted. 46 C.F.R. §502.63(c)(4).

The factual allegations pleaded in the Commission Order address Respondent's violations of the Shipping Act which are now deemed to be admitted. However, the allegations in the Commission Order do not address the issue of civil penalties, an issue that the Order requires the ALJ to address and which will ordinarily involve the submission of additional evidence in a default proceeding. See 46 C.F.R. §502.65(c).

In a recent enforcement proceeding in a similar posture to that involved here, the ALJ issued a Notice of Default and Order to Show Cause affording the respondent a final opportunity to respond and show cause why judgment should not be entered against it and also warning of the consequences of its failure to respond. Docket No. 13-01, *United Logistics (LAX), Inc. – Possible Violations*, Notice of Default and Order to Show Cause, served April 3, 2013. BOE submits such a course of action would be appropriate here. If Respondent fails to respond, BOE will thereafter

move for a judgment based on an evidentiary record sufficient to permit the ALJ to address the issues set forth in the Commission's Order.

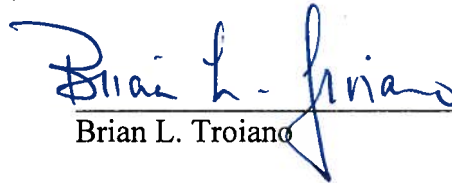
Respectfully submitted,



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CERTIFICATE OF SERVICE

I hereby certify that the Bureau of Enforcement's Status Report was served upon Oceanic Bridge International, Inc., 18725 E. Gale Ave., #233, City of Industry, CA 91748, by first class U.S. mail with postage prepaid this 18th day of April, 2014.


Brian L. Troiano